

¹⁵⁰
In the Supreme Court
Ecclesiastical Jurisdiction

In the Will of James
Squire of Ripping Point
Brewer deceased.

Path of James Squire
and Lucy Harding

15th Aug 1822
No 16

N^o 150.
C.H.C.

Boston

Work

Bath ——— 10-0

Copy on Parchment 2-0-0

Distⁱⁿ Book — 1-4-0

Probate — 7-10-0

Distⁱⁿ 3rd Term — 11-4-0

100

In the Supreme Court of Civil Judicature in
and for the Territory of New South Wales—

In the Will of James Squire of Kissing Point in the
said Territory Deceased

Appeared personally James Mason
^{otherwise Squire} of Kissing Point aforesaid and Lucy Harding of the
same place and being severally duly sworn upon the
Holy Evangelists of Almighty God severally make oath
and say that they believe the annexed paper writing to
be the last Will and Testament of the said James Squire
deceased, that they will pay the Debts and Legacies of
the deceased as far as the Goods shall extend and the
Law shall bind them, and that they will exhibit a
true full and perfect Inventory of all and singular
the Goods rights and Credits of the said deceased together
with a just and true account into the Registry of this
Honorable Court when they shall be lawfully called
thereunto, and that they believe the Goods Chattels
and Credits of the said deceased are under the
value of Two thousand pounds.—

Sworn at Sydney aforesaid
this fifteenth
day of August— 1822

James Squire

Before me...

The mark of X
Lucy Harding

Bartholomew,
Judge

In the Supreme Court
322.

In the goods of
James Squire dec^d

Bath

June 7th 1827 Administration
-tion granted to Jas^e
Cooper Dated 31st July
1827.

In the Supreme Court of New South Wales.

In the Goods of James Squire late of
Kippin Point deceased. —

Appeared personally Daniel Cooper of
Sydney in the Colony of New South Wales
Merchant and being duly sworn upon
the Holy Evangelists of Almighty God maketh
Oath and Saith that he will well and
truly administer all and every the Goods of
the said deceased and pay his debts so
far as his goods ^{and the law will bind you} will extend, and that
he will exhibit a full true and perfect
Inventory of the said Goods of the said
deceased and render a true account
of his Administration unto the Supreme
Court of Civil Judicature for the Territory
of New South Wales when he shall be
thereunto lawfully required And that
he believes the said Goods do not exceed
the value of Two thousand Pounds.

Sworn in open Court
this nineteenth day of June
in the year of our Lord
1827

~~Before me~~
By the Court

In the Supreme Court

In the Goods of
James Squire dec'd

Daniel Cooper
and others -

to

Our Sovereign
Lord the King

Bound

To Administer &c

Norton

Know all Men by these Presents
That we Daniel Cooper, Richard Charles
Pritchett and Barnett Levey all of
Sydney in the Colony of New South Wales
Merchants are jointly and severally
held and firmly bound to our Sovereign
Lord the King his Heirs and Successors
in the Penal sum of Four thousand Pounds
of lawful money of Great Britain for
the due payment whereof we hereby
each bind ourselves our respective Heirs
Executors and Administrators. In Witness
whereof we have hereunto set our hands
and seals this Eighth - day of June
in the year of our Lord one thousand
eight hundred and twenty seven.

The Condition of this Obligation is such
that if the above bounden Daniel Cooper
Administrator of the goods Chattels and Effects
^{James Squire}
of ~~the~~ deceased, do make, or cause to be made
a true and perfect Inventory of all and
singular the goods Credits and Effects of the said
deceased which have or shall come to the
hands or possession of any other person or
persons for him; and the same so made do
exhibit, or cause to be exhibited unto the
said Supreme Court of New South Wales at
or before the Eighth day of December
next, and the same goods Chattels Credits
and Effects, and all other the goods Chattels
Credits and Effects of the deceased at the time
of his death, or which at any time afterwards
shall come to the hands or possession of such

Administrator or to the lands or possessions
of any other person or persons for him, shall
well and truly administer according to law
And further shall make or cause to be made
a true and just account of his said
Administration at or before the eighth day
of June which will be in the year of our
Lord one thousand eight hundred and twenty
eight, And afterwards from time to time
as he shall be lawfully required. And
all the rest residue and remainder of
the said Goods Chattels Credits and Effects which
shall be found from time to time remaining
upon the said Administration Accounts, the
same being first examined and allowed of
by the said Supreme Court of New South-
-Wales, shall and do pay and dispose of
in a ~~to~~ due Course of Administration, or in
such manner as the said Court shall direct.
Then this obligation to be void and of non
effect, or else to be and remain in full
force and virtue. -

Signed sealed and
delivered in the presence

of -

Daniel Cooper

RL Pritchett

Bennett Levy

R. Murphy

In the Supl. Court
of His Co. Wales

In the Goods of
James Squire decd

Petition of Danl.
Cooper for Admon
as a creditor of the
deceased -

Notion

Admon 8-0-4
Sub^d Turn Wg 9

Notion

Proctor for Danl.
Cooper & John Lewis -

In the Supreme Court of New South Wales
In the Goods of James Squire late
of Kissing Point in the Colony of New
South Wales Brewer deceased

To The Honorable Francis Forbes Chief
Justice &c. &c. &c.

The Humble Petition of Daniel
Cooper of Sydney -

Sheweth.

That the said James Squire
deceased departed this life some time since
having first made and published his last Will
and Testament in writing, but from the
circumstance of the said Will having been
lost the same was never proved in this Honorable
Court -

That the said deceased at
the time of his death was indebted to your
Petitioner and his Partner Solomon Levey
in a very considerable sum of money which
has never since been paid off or satisfied

That the widow of the said
deceased is willing that Letters of
Administration should be granted by
this Honorable Court to your Petitioner and
his Partner as Creditors

Your Petitioner therefore most
humbly prays your Honor to

grant him and his said Partners
Letters of Administration of the
Estate and Effects of the said deceased
as such Creditors

And Your Petitioner will ever pray

In the Supreme Court
of New South Wales

In the Goods of James Squire
deceased

Cameat for Daniel Cooper &
Solomon Levey agst. admⁿ & ad being
granted to Mary Squire W^o
of the said James Squire deceased.

James Norton
Proctor for the
said Daniel Cooper
& Solomon Levey

150

8-19-22

822-19-8

183

In the Estate of James Squire

testation to Lucy Hardy to bring
in Will and to all Christian people

Exchd 2 Oct: 1826 & 16 Oct: 1826

Wentworth
14th Sept: 1826.

Shrin

L. H.

Supreme Court

In the Estate of
the late James Squire
dec'd —

Citation —

Norton

George the Fourth by the Grace of God of the United
Kingdom of Great Britain and Ireland King Defender
of the Faith and so forth &c

To our dearly beloved in Christ Mary
Ann Squire Widow of James Squire late
of Kippis Point deceased and Lucy Harding
of Sydney - And to all other the next of
Kin, and to all Christian people -

Greeting - You and each of you are hereby cited
that you appear personally or by one of the Proctors
of the Ecclesiastical Jurisdiction of the Supreme Court
of New South Wales on Friday the first day of
June next - You Mary Ann Squire and Lucy
Harding duly to bring in and prove the above
mentioned Will or else formally to renounce
the burthen of executing the same - And you
all manner of other Christian people in this
Colony to shew Cause why Administration
of the Goods Chattels and Credits of the said
James Squire otherwise Mason with the Will
annexed should not be granted to Daniel
Cooper a Creditor of the said deceased.

Witness the Honourable Francis Forbes
Chief Justice of the Supreme Court at
Sydney aforesaid the ~~twenty~~ fourth
day of May in the year of our Lord
one thousand eight hundred and
twenty seven. -

James Norton
Proctor -

G. G. Mills
Registrar

Jeremiah Leonard

Recd. served Copy on
L. Harding 6th May
1827

Served Copy on Mr Squire
23rd May 1827

Jeremiah Leonard

At the Supreme Court of New South Wales

In the Goods of James Squire otherwise
Mason deceased.

Richard Day and Jeremiah Leonard both of Sydney
in the Colony of New South Wales Appeared personally
and being severally duly sworn upon the Holy
Evangelists of Almighty God severally make
Oath and say, And first the said Richard Day
for himself saith that he did on the ~~seventh~~^{fourth}
day of May last personally serve Lucy Harding
of Sydney with a true copy of the annexed Citation
And the said Jeremiah Leonard for himself
saith that he did on the 23rd day of May
aforesaid personally serve Mary Anne Squire
the widow of the said deceased with a true
copy of the annexed Citation. And the said
Richard Day further saith that the same
hath been twice published in the Sydney
Gazette. —

Sworn in open Court this
seventh day of June in the
year of our Lord one thousand
eight hundred and twenty
seven. —

Rd Day
Jeremiah Leonard

By the Court

Unimpaired
of Mrs. Squire's
as ~~part~~ of the
will of
Wm. Squire Squire

Lyon
at - } Gule
the Squire

Supreme Court

I hereby renounce the Execution of the
last will and testament of James Squire
otherwise Mason late of his Majesty's
in the Colony of New South Wales, ^{deceased} and
decline to take on / probate of the
same — Altho I am appointed
Executor in the said will —

Dated this 29th March 1802

Mary Ann Squire

Present

Chas^r M^r Lambertz

James Squire] — This is the last will and testament of me
James Squire of Hising point in the territory
of New South Wales. I direct the payment of my just debt
funeral and testamentary expenses by my Executor and Executrix
hereinafter named as soon as conveniently may be after my decease
I give devise unto James Mason otherwise Squire a natural son of
mine by Elizabeth Mason deceased the messuage and premises in
which I now live together with the piece or parcel of Land on which
the same stand containing twenty five acres and called by the
name of Pollards farm also I give and devise unto the said James
Mason otherwise Squire my farm containing one hundred and
sixteen acres granted to Nicholas Bayley Esquire also my farm
containing fifty acres granted to John Callaghan also my farm
containing thirty acres granted to John Bazely to hold the said
four several farms or pieces or parcels of Land unto the said
James Mason otherwise Squire and to the heirs of his body
lawfully begotten for ever I give and devise unto Precilla the
wife of Thomas Small (a natural daughter of mine by the
said Elizabeth Mason deceased) all that my farm containing
thirty acres formerly granted to William Coreless to hold the
same unto the said Precilla Small until her son James
Small shall attain the age of twenty one years and when he
shall attain that age I give devise the same unto the said James
Small to hold the same to him his heirs and assigns for ever I give
and devise unto Elizabeth the wife of John O'Donnell also a
natural daughter of mine by the said Elizabeth Mason deceased
all that my farm containing thirty acres formerly granted to John
Laurel also my farm containing thirty acres granted to Thomas
Chaddock also my farm containing fifty acres granted to Joseph
Hutton also my farm containing sixty acres granted to William
Terrell also my cottage or dwelling house situate in Castlereigh
street Sydney to hold the said four several last mentioned farms
or pieces or parcels of Land and also the said cottage or Tenement
unto the said Elizabeth O'Donnell and to the heirs of her body
lawfully begotten for ever I give and devise unto Mary Mason
otherwise Squire (also a natural daughter of mine by the said
Elizabeth Mason deceased) all that my farm containing thirty
acres granted to William Johnson also my farm containing
sixty acres granted to Sarah Felder also my farm containing
two hundred and eighty five acres granted to William Raven
also my farm containing thirty acres granted to
Everell also my farm containing thirty acres granted to
Jones also my farm containing fifty five acres granted to
Archibald Morrison also my farm containing sixty acres
granted to William House to hold the said seven several last
mentioned farms or pieces or parcels of Land unto the said
Mary Mason otherwise Squire and to the heirs of her body
lawfully begotten for ever I give and bequeath unto my wife
Martha Squire now residing in London Great Britain the sum
of fifty pounds also I give and bequeath unto my son John
Squire also residing in Great Britain the sum of Thirty pounds
also I give and bequeath unto my son James Squire also residing
in Great Britain the sum of Thirty pounds also I give and
bequeath unto my daughter Sarah Squire also residing in
Great Britain the sum of thirty pounds which said legacies I do

hereby direct my Executor and Executrix to transmit to England
 soon as they conveniently can after my decease also I give and bequeath
 unto James Spencer the son of Francis Spencer of Sydney aforesaid
 a natural child of mine by Mary Spencer deceased the sum of
 thirty pounds also I give and ~~bequeath~~ bequeath unto John Bray
 son of Martha the wife of Thomas Bray formerly Martha Mason
 otherwise Squire now deceased the sum of thirty pounds also I
 give and bequeath unto Sarah the wife of William Lucas (formerly
 Sarah Mason otherwise Squire spinster) the sum of one hundred
 pounds also I give and bequeath unto George Lucas a son of the
 said Sarah Lucas the sum of thirty pounds also I give and
 bequeath unto Lucy Harding my housekeeper as a reward for
 her long and faithful services to myself and my family the sum
 of nine hundred pounds also the boat called the Lucy the pur-
 chased and bequeath and any other articles of household furni-
 ture ^{the more} amounting in value with those already mentioned
 the sum of one hundred pounds so as to make up the whole sum
 bequeathed to her amount to one thousand pounds also I give
 and bequeath unto Mr Mary Audling as a reward for her
 services in my family the sum of one hundred pounds also a sum
 of mourning also I give and bequeath unto my servants John
 Bray John Robins Thomas Gale John Conney John Cecaton
 and Thomas Dwyer the sum of ten pounds each to purchase
 them mourning I give devise and bequeath all the rest residue
 and remainder of my real and personal estate and effects
 every description which I shall be possessed of or entitled unto
 the time of my decease unto and equally between the said
 James Squire otherwise Mason Freckles Small Elizabeth
 O'Donnell and Mary Mason otherwise Squire share and share
 alike as tenants in common and to their several and respective
 heirs and assigns I nominate constitute and appoint the said
 James Mason otherwise Squire and Lucy Harding Executors
 and Executrix of this my will and hereby revoking all former
 and other wills by me at any time heretofore made declare this
 only to be and contain my last will and testament In witness
 whereof I have to this my last will and testament contained
 two sheets of paper to the first sheet set my hand and to the
 second and last sheet thereof set my hand and seal this
 day of April in the year of our Lord one thousand eight hundred
 and twenty two — James Squire. (L. S.) — Signed sealed
 published and declared by the said James Squire the testator as
 for his last will and testament in the presence of us who in
 presence at his request and in the presence of each other have
 herunto subscribed our names as witnesses — James Norton
 Thomas Fox — John Small —

Proved sworn and
 attested the value of
 £2000.

Probate granted to James Mason otherwise Squire
 and Lucy Harding both of Kissing Point, the Executors
 and Executrix the 15th of August 1822. Norton, Proctor.